

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 25, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn and pursuant to support received by Mr. Johnson and Mr. Roybal, items #12 and #15(a) were removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on July 11, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a restaurant liquor license application filed with the City Clerk’s Office for Los Aguacates Inc. d/b/a Tres Amigos Family Mexican Restaurant, 1802 Dell Range Blvd., Suite 2, Cheyenne, WY. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Section 2.40.020, Appointment of Judges – Powers Generally, of Chapter 2.40, Municipal Court, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute dated July 19, 2022, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Rinne. (#4452)

ORDINANCE – 3rd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#4453)

ORDINANCE – 2nd READING – Amending various sections of Chapter 13.12, Sewer System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming to allow for exceptions to sewage disposal requirements. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending Ordinance No. 4411 Defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2022-2023 – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE – 1st READING – Amending Chapter 1.16, Annexation and Infrastructure Improvements, of Title 1, General Provisions, of the Municipal Code of the City of Cheyenne, Wyoming, to repeal annexation provisions, amend definitions, and modify processes – referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Acknowledging receipt of the East Cheyenne Community Park Master Plan Report and Appendices. Dr. Rinne moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#6256)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Airport Improvement Program to assist in funding costs related to a reimbursable agreement for Precision Approach Path Indicator and Localizer Design and Construction – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the submission of an application to the State Loan and Investment Board for a grant through Water and Sewer ARPA Grant Program Funding on behalf of the Governing Body for the City of Cheyenne for the purpose of providing critically needed flood control at East Dell Range Boulevard and Van Buren Avenue – referred to Finance Committee. (Sponsor – Mr. White)

Professional Services Agreement between the City of Cheyenne and HDR Engineering, Inc. for the Pedestrian Traffic Safety Study and HAWK System Design Project (2019-2022 1% Sales Tax). Mr. White moved to approve in an amount not to exceed \$73,271.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Laybourn. (#7561)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and A.V.I. p.c. for the Powderhouse Road Corridor Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$147,694.80). (#7562)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Shelter Services (General Fund). Mr. White moved to approve in an amount not to exceed \$528,000.00, seconded by Mr. Roybal. Mr. Cook moved to amend by substitute dated July 18,

2022, seconded by Mr. Segrave. Motion to amend by substitute failed. Voting “no” – all members of the governing body. Dr. Aldrich moved to postpone to August 8, 2022, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Laybourn and Dr. Rinne.

[CA] Agreement between the City of Cheyenne, Civic Center, and I.A.T.S.E. Local 229 for production services (Civic Center Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Plan One Architects for architectural services for the Cheyenne Solid Waste Transfer Station original building roof replacement (Solid Waste Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Patrick Engineering Inc., for the Inventory, Condition Assessment, and Data Migration of City Facility assets to Cartegraph OMS Project (American Rescue Plan Federal Recovery Funds) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and KLJ Engineering for the Environmental Permitting Services for the City of Cheyenne’s industrial facilities (Solid Waste Fund & 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Community Recreation and Events softball and baseball fields (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for Street and Alley for Compost operations (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and the Cheyenne Airport Board for land to be used for the Weed and Pest Division (2019-2022 1% Sales Tax) – referred to Finance Committee.

Contract Modification #1 to Contract #7255 between the City of Cheyenne and Simon Contractors for the East 12th Street Meadow Drive Mill and Overlay Project for the addition of storm sewer improvements (1% Specific Purpose Sales Tax). Mr. White advised the item was reviewed under other items for the agenda at the July 18, 2022 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to approve in an amount not to exceed \$272,462.60, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich. (#7255)

[CA] Request to expand seating area for consumption relating to City of Cheyenne Bar & Grill Liquor License held by Paris West Restaurant and Bar, located at 1719 Central Avenue, Cheyenne, WY – referred to Finance Committee.

Reappointments of Miles Henderson and Scott Thomas to the Public Transit Advisory Board. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments).

Appointments of Richard Leslie to the Public Transit Advisory Board; Shane Paul to the Mayor’s Council for People with Disabilities; and Amy Hernandez to the Planning Commission. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments).

Comment was made by Dr. Aldrich on the Voucher Report as presented.

No comments were made on the revenue report as presented.

Under other business:

Mr. White noted the motion to approve the purchase and sale agreement between the City of Cheyenne and Retail Properties C, LLC passed at the July 11, 2022 City Council meeting. Having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, Mr. White moved to reconsider the vote taken on the purchase and sale agreement, seconded by Mr. Segrave. Motion to reconsider carried. Voting “yes” – all members of the governing body. Mr. Segrave moved to amend by substitute, seconded by Mr. Roybal. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Segrave. (#7551)

There being no further business to come before the governing body, the meeting was officially adjourned at 6:33 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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